

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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CARLSON SHANNON,

Docket No.

Plaintiff,

-against-

**COMPLAINT AND
JURY DEMAND**

THE CITY OF NEW YORK, POLICE OFFICER ERIK
M. HIRSCH, SHIELD #17311, ROBERT LAUDICINO,
SERGEANT KOTARSKI, POLICE COMMISSIONER
RAYMOND KELLY, DEPUTY INSPECTOR JOSEPH T.
CAMPBELL, CAPTAIN KEVIN HARRINGTON, JOHN
DOE ##1-8

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of his rights secured by 42 USC §1983, the First, Fourth, and Fourteenth Amendments to the United States Constitution, and the laws and Constitution of the State of New York.

2. The claims arise from a September 20, 2003 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to, inter alia, false arrest, malicious prosecution, assault, battery, and false imprisonment for acts of which plaintiff was innocent.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action is brought pursuant to 28 USC §1331, 42 USC §§1983, 1985, and the First, Fourth, and Fourteenth Amendments to the United States Constitution. Pendent party jurisdiction and supplementary jurisdiction over plaintiff's state law claims is asserted.

5. The amount in controversy exceeds \$75,000.00 excluding interest and costs.

6. Venue is laid within the United States District Court for the Southern District of New York in that Defendant City of New York is located within and a substantial part of the events giving rise to the claim occurred within the boundaries of the Southern District of New York.

PARTIES

7. Plaintiff is a citizen of the United States and at all times here relevant resided in the County of Kings, City and State of New York.

8. The City of New York is a municipal corporation organized under the laws of the State of New York.

9. The New York City Police Department ("NYPD") was at all times here relevant a subdivision of the City of New York.

10. Deputy Inspector Joseph T. Campbell ("the Inspector") is, and all times here relevant was the commanding officer of the 73rd precinct of the New York City Police Department (NYPD) and, as such, is a policy maker with respect to training, supervision, and discipline of NYPD officers within the precinct, including the other individual defendants. The Inspector's principal place of business is 1470 East New York Avenue, Brooklyn, New York 11212. The Inspector is sued in his individual and official capacities.

11. Captain Kevin Harrington ("the Captain") is, and all times here relevant was the commanding officer of the PSA 2, a service area of the New York City Police Department

(NYPD) and, as such, is a policy maker with respect to training, supervision, and discipline of NYPD officers within the service area, including the other individual defendants. The Captain's principal place of business is 560 Sutter Avenue, Brooklyn, New York 11207. The Captain is sued in his individual and official capacities.

12. Police Officers Erik M. Hirsch, shield #17311, Robert Laudicino, Sergeant Kotarski, and John Doe ##1-8 ("the officers") were at all times relevant Police Officers, Detectives, or Sergeants of the NYPD, and are sued in their individual and official capacities.

13. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

NOTICE OF CLAIM

14. Within 90 days of the events giving rise to this claim, as well as of their termination in plaintiff's favor, plaintiff filed written Notices of Claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

15. On September 20, 2003, at approximately 8:30 PM, the officers began verbally abusing plaintiff and others. When plaintiff responded verbally to the abuse, the officers grabbed plaintiff, and arrested him without probable cause. In the process, the officers used excessive force on plaintiff, hitting him with blunt objects, fists, and feet.

16. Following the assault, the officers arrested plaintiff and falsely charged him with criminal charges. The officers caused criminal proceedings to be initiated against plaintiff and filed false statements against plaintiff.

17. Defendant police officers intentionally and maliciously caused false charges to be brought against plaintiff. All criminal charges related to the incidents complained of were dismissed.

18. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers conspired with and assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. The officers deliberately failed to correct each other's false statements against plaintiff.

19. During all of the events above described, defendants acted maliciously and with intent to injure plaintiff.

20. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

- a. Violation of his right to freedom of speech, pursuant to the First Amendment to the United States Constitution and Article 1, Section 8 of the New York State Constitution to speak freely;
- b. Violation of his rights pursuant to the Fourth Amendments to the United States Constitution to be free from an unreasonable search and seizure of his person;
- c. Violation of his New York State constitutional rights under Article 1, Section 12 to be free from an unreasonable search and seizure;
- d. Violation of his rights to Due Process of Law pursuant to Article 1, Section 6 of the New York State Constitution and the Fourteenth Amendment to the United States Constitution;
- e. Physical pain and suffering, requiring the expenditure of money for

treatment;

f. Emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, financial loss, and property damage;

g. Loss of liberty;

h. Attorney's and court fees.

**FIRST CAUSE OF ACTION
(ASSAULT)**

21. Paragraphs one through 19 are here incorporated by reference.

22. Upon approaching plaintiff, and arresting him, defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

23. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under 42 USC §§1983 and 1985 and the New York State Constitution.

24. Plaintiff was damaged by defendants' assault in the amount of One Million (\$1,000,000.00) Dollars.

**SECOND CAUSE OF ACTION
(BATTERY)**

25. Paragraphs one through 23 are here incorporated by reference.

26. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him.

27. Defendants used excessive and unnecessary force with plaintiff.

28. Defendants have deprived plaintiff of his civil, constitutional and statutory rights

and have conspired to deprive him of such rights and are liable to plaintiffs under 42 USC §§1983 and 1985 and the New York State Constitution.

29. Plaintiff was damaged by the battery of the defendants in the amount of One Million (\$1,000,000.00) Dollars.

THIRD CAUSE OF ACTION
(FALSE ARREST AND ILLEGAL IMPRISONMENT)

30. Paragraphs one through 28 are here incorporated by reference.

31. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

32. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under 42 USC §§1983 and 1985 and the New York State Constitution.

33. As a result of the false arrest, imprisonment, and deprivation of liberty, plaintiff was damaged in the sum of One Million (\$1,000,000.00) Dollars.

FOURTH CAUSE OF ACTION
(MALICIOUS PROSECUTION)

34. Paragraphs one through 32 are here incorporated by reference.

35. Defendants caused false criminal accusatory instruments to be filed against plaintiff.

36. The criminal proceedings were terminated favorably to plaintiff.

37. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiffs under 42 USC §§1983 and 1985 and the New York State Constitution.

38. As a result of the malicious prosecution implemented by defendants, plaintiff was

damaged in the sum of one million (\$1,000,000.00) dollars.

FIFTH CAUSE OF ACTION
(MUNICIPAL AND SUPERVISORY LIABILITY)

39. Paragraphs one through 37 are here incorporated by reference.

40. The City, the Commissioner and the Inspector are liable for the damages suffered by plaintiff as a result of the conduct of their employees, agents, and servants and the others whose names are currently unknown.

41. The City, the Commissioner and the Inspector knew or should have known of their employees', agents, or servants' propensity to engage in the illegal and wrongful acts detailed above.

42. The aforesaid event was not an isolated incident. The City, the Commissioner and the Inspector have been aware for some time (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board) that many of their police officers are insufficiently trained on the proper basis for an arrest, and the observations required to support probable cause. The City, Commissioner and Inspector are further aware, from the same sources, that a "wall of silence" exists by which police officers assault citizens without fear of reprisal. The City, Commissioner and Inspector completely fail to ever discipline officers for failing to report fellow officers' misconduct that they've observed, and they completely fail to ever discipline officers for making false statements to disciplinary agencies. Additionally, the City, Commissioner and Inspector have isolated the New York City Law Department ("Corporation Counsel") from the discipline of police officers, so that civil suits against police officers for actions taken in their capacity as police officers have virtually no impact on the officers' careers, regardless of the outcome of the civil actions. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice,

the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate the plaintiff's civil rights, without fear of reprisal.

43. The City the Inspector and the Commissioner knew or should have known that the officers who caused plaintiff injury had a propensity for the type of conduct that took place in this case. Nevertheless, the City and the Captain failed to take corrective action.

44. The City the Inspector and the Commissioner have failed to take the steps to discipline, train, supervise or otherwise correct the improper, illegal conduct of the individual defendants in this and in similar cases involving misconduct.

45. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of New York City and the Inspector and the Commissioner to the constitutional rights of persons within New York City, and were the cause of the violations of plaintiff's rights here alleged.

46. Defendants City of New York, the Commissioner and the Inspector have damaged plaintiff by their failure to properly train, supervise, discipline, review, remove, or correct the illegal and improper acts of their employees, agents or servants in this and in similar cases involving police misconduct.

47. Plaintiff has been damaged as a result of the wrongful, negligent and illegal acts of the City the Commissioner and the Inspector in the amount of one million (\$1,000,000.00) dollars.

SIXTH CAUSE OF ACTION
(42 USC §§1981, 1983)

48. Paragraphs one through 46 are here incorporated by reference.

49. Defendants have deprived plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to plaintiff

under 42 USC §§1981, 1983 and the New York State Constitution.

50. Defendants' conduct deprived plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth Amendments to the United States Constitution, in that the seizure of plaintiff was without probable cause, and with excessive force. Defendants' conduct further deprived plaintiff of Due Process of Law, pursuant to the 14th Amendment to the United States Constitution, in that plaintiff was subjected to arrest without due process of law. Defendants' conduct further violated plaintiff's rights pursuant to the First Amendment to the United States Constitution in that the officers assaulted plaintiff in retaliation for his lawful protestations of their treatment of other civilians.

51. Plaintiff has been damaged as a result of defendants' wrongful acts in the amount of one million (\$1,000,000.00) dollars.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally, as follows:

A. In favor of plaintiff in the amount of one million (\$1,000,000.00) dollars of each of plaintiff's Causes of Action;

B. Awarding plaintiff punitive damages in the amount of one million (\$1,000,000.00) dollars on each of plaintiff's Causes of Action;

C. Awarding plaintiff reasonable attorneys' fees, costs and disbursements of this action; and

D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

DATED: Brooklyn, New York

November 16, 2004

TO: New York City
Corporation Counsel Office
100 Church Street, 4th Floor
New York, NY 10007

Police Officer Erik M. Hirsch, shield #17311
Police Service Area 1
2860 West 23rd Street
Brooklyn, NY 11224

Robert Laudicino

Sergeant Kotarski
102nd Precinct
Task Force Office
87-34 118th Street
Richmond Hill, NY 11418

Police Commissioner Raymond Kelly
1 Police Plaza, Room 1406
New York, NY 10006

Deputy Inspector Joseph T. Campbell
73rd Precinct
1470 East New York Avenue
Brooklyn, NY 11212

Captain Kevin Harrington
Police Service Area 2
560 Sutter Avenue
Brooklyn, NY 11207

Yours, etc.,

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